

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN LIBERIA

Complete Community Opposition How-To

This guide is built around Liberia's distinctive lever — the community's legal right to give or withhold its free, prior, and informed consent to what is done on its customary land — and it names the bodies and terms you'll meet (the concession and MOU, FPIC, the EPA and EIA, customary land and the Land Rights Act, the RSPO, the courts) in plain words the first time.

INTRODUCTION & FRAMEWORK

In Grand Bassa County, a British palm-oil company — listed in London and backed by a large Malaysian corporation — sought to expand its plantation onto some **twenty thousand hectares** of the **Jogbahn Clan's** customary land: the forests, farms, and wetlands the people rely on for their food and their living. The clan did not consent. Again and again, in more than twenty meetings with officials and legislators, they **said no** — and they invoked a right written into Liberia's own law: **the right of a community to give or withhold its free, prior, and informed consent** to activities on its customary land. They refused to let the land be surveyed or cleared. They gathered a petition of tens of thousands of names. They stood with Liberian and international organisations. And the pressure rose until it reached the President herself, who met the communities and **committed that the company could not expand onto the clan's land without the community's approval**. The clan celebrated: their land, they said, was free. It was, as the organisations that stood with them said, a landmark for the recognition of customary land rights.

The Jogbahn Clan forced Liberia's highest office to recognise that its customary land was its own — by asserting a right written into Liberia's own law — and the tools it used are rooted in land and consent. The country's **community-rights law recognises free, prior, and informed consent (FPIC)** over customary land, and the **Land Rights Act** strengthens communities' ownership of their customary land, even without a deed. A large project needs an **environmental permit and EIA** from the **EPA**, and a **concession or MOU** whose terms and consent a community can contest. Palm-oil and other investors often depend on **certification (the RSPO)** and on financiers whose reputations a campaign can reach. And the **courts** are open; protest, petition, and litigation are lawful. The decisive move was to turn these into refusal: documenting what the deal truly was, withholding the consent the law protects, and refusing to let the land be surveyed or cleared, until the pressure reached the President herself. But these tools have real limits, and this guide states them plainly. The Jogbahn win was above all a **recognition** — a Presidential commitment and a precedent — not the final erasure of every threat; concessions across the country remain, the struggle over customary land continues, and the clan had to defend its stand against **pressure and even violence**. And Liberia is a country where powerful concession-holders, weak institutions, and the hunger for investment tilt the field. So aim for what these tools can deliver, and keep defending the win, because the pressure returns.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and claims, and a chain breaks at its weakest link. A large Liberian land project needs your **customary land** — so it needs your **FPIC**, your consent; it needs its **concession or MOU**, its **environmental permit and EIA**; and, often, its **certification and**

finance. Every one of those is a link you can grab — and your right to withhold consent is the strongest. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If it's on your customary land, your right to withhold FPIC is your sharpest lever** — it's written in law, and it's what the Jogbahn Clan used.
- **If it needs an environmental permit or a concession, those and their terms are real grounds.**
- **If the company depends on certification or foreign finance, those are pressure points** — a certifier or financier won't stay with an exposed abuse.
- **If powerful concession-holders and weak institutions are against you, expect a hard fight** — pair the refusal with a coalition and public pressure, and keep defending the win.

Read the whole guide once before you move. Two habits run through it: **assert your written right to withhold consent, and refuse to let your land be surveyed or cleared** — the Jogbahn lever — and **build the coalition and raise the pressure**, from the community to the President to the world. That's how the clan's land was freed.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Two things must line up. First, the **land and consent**: on customary land, the law recognises the community's **FPIC** and, under the **Land Rights Act**, its ownership — so the developer needs your consent. Second, the **environmental permit and EIA** from the **EPA**, and the **concession or MOU** granted by the government. Palm-oil investors also depend, in practice, on their **RSPO certification** and their financiers. And the **courts** review the legality of it all. Know which of these you can grab — and your consent is the sharpest.

How a Project Moves — and Where You Jump In

The land and FPIC. The developer must secure your customary land. *Your opening — the strongest:* assert your written right to give or withhold **FPIC**, and withhold it.

The concession, MOU, and permit. The project needs its concession or MOU and its EIA/permit. *Your opening:* contest the terms, the consent, and the assessment's flaws.

Survey and clearing. The company moves to survey and clear the land. *Your opening — powerful:* refuse to let it be surveyed or cleared, as the Jogbahn Clan did.

Certification and finance. *Your opening:* take an exposed abuse to the RSPO and the financiers.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including the foreign parent and financiers, whose reputations you can reach. **What it needs from you** — your customary land and your consent: that is your leverage. **What legitimacy it depends on** — the RSPO certification, the finance, the concession: each a pressure point.

Who's Supposed to Be Watching

Each is an ally or an arena. The **EPA** runs the permit and EIA. The **law and the courts** protect FPIC and customary land under the Land Rights Act. The **RSPO** can withdraw a palm-oil company's certification. And Liberia's **community-land and environmental organisations (like the Sustainable Development Institute)**, **international allies (like Global Witness and Friends of the Earth)**, and the **press** are the forces that reach furthest — the coalition that stood with the Jogbahn Clan.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether it's your customary land, whether you assert and hold FPIC, whether the company depends on certification and finance, and how powerful the concession-holder is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Assert and withhold FPIC / refuse survey	30–55%	months	low	Consent withheld; expansion blocked
Contest the concession/MOU/permit	20–45%	months–yr	low	Terms or approval challenged
Objections in the EIA	15–35%	during EIA	low	On record; conditions or a redo
RSPO grievance / certification pressure	30–55%	months–yr	low	Stop-work; certification at risk
Coalition + petition + public pressure	30–55%	months–yr	low	Recognition; commitment (Jogbahn)
Court challenge (customary land / FPIC)	20–45%	1–3 yr	mod	Land right upheld; grant quashed
Everything together (customary land, FPIC held, certified/financed)	40–65%	1–3 yr	mod	Stopped, cut back, recognised, held
Everything together (powerful concession-holder)	20–45%	1–3 yr	mod	Delayed; cut back; recognised

The levers that move the needle most are **asserting and withholding FPIC** and **refusing to let the land be surveyed**, backed by the coalition, the RSPO route, and public pressure. Jogbahn shows the ceiling (a Presidential commitment that the clan's land was free) and the honest floor (a recognition to be defended, won against pressure and violence). So aim for consent withheld, a concession stopped or cut back, a right recognised, and a boundary held — and keep defending it.

On cost: asserting FPIC, refusing survey, and organising are cheap; your right to withhold consent costs nothing to hold, and the RSPO grievance and international exposure are low-cost, high-reach tools. The great strength is that the law puts the consent in your hands — and the great danger is pressure and division, so hold your community together and protect its people.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this customary land, this withheld consent, this abuse — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its **foreign parent** and financiers, and its **RSPO certification** if any.

2. Whose land is it on, and what does it touch? Establish that it's your **customary land** — yours under the Land Rights Act even without a deed — and map it over your forests, farms, and wetlands. **Your customary land and your right to withhold consent are your sharpest levers.**

3. What stage is it at, and what's the next deadline? Is a concession or MOU being sought? An EIA or permit in process? Is the company moving to survey or clear (the moment to refuse)? These openings are time-bound.

4. What does it need from you, and what does it depend on? Your land and consent; and its concession, permit, certification, and finance — each a pressure point.

5. Is your community united, and who else stands with you? The whole clan, decided together; and community-land and international organisations. Jogbahn's power was a united clan and a broad coalition.

What this looks like in real life. A community learns a palm-oil company will expand onto its customary land, backed by a foreign parent and holding RSPO certification, moving to survey. The five questions yield: a company and its parent and certifier; your customary land (your lever); a concession or permit in process; a project needing your consent; and a united clan with a coalition. That's the Jogbahn pattern — assert and withhold FPIC, refuse the survey, and raise the pressure to the RSPO, the President, and the world.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: your land and your consent. Document your **customary ownership and use** — the boundaries, the farms, the sacred sites, the history of use (yours under the Land Rights Act, no deed required) — and record clearly and collectively that you **withhold consent**. This is the heart of a Liberian case.

Layer two: the paper trail and the abuses. Get the concession or MOU, the EIA and permit, the company's RSPO status and financiers, and document any **abuses** — land surveyed or cleared without consent, illegal logging, broken promises, pressure or violence.

Layer three: the map of land and harm. Lay the project over your customary land — your forests, farms, and wetlands — so your ownership and the harm are undeniable. Walking into the EPA, the RSPO, the President's office, or a court with your customary ownership documented, your consent withheld, and the abuses recorded is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **Proof of customary ownership and use** — boundaries, farms, sacred sites, and the history of use.
- **The record of withheld consent** — clear, collective, and documented.

- **The concession/MOU, the EIA and permit, the RSPO status and financiers** — from the government, the EPA, and the company's own materials.
- **The abuses** — survey or clearing without consent, illegal logging, pressure or violence.
- **The land-and-harm map** — your forests, farms, and wetlands, laid over the project.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a united community and a broad coalition give you power — the Jogbahn model. Build in four moves.

Unite the whole community. The Jogbahn Clan's power was a united clan, deciding and acting together across more than twenty meetings. Decide collectively, and hold together against the pressure and division a company will try to sow.

Assert the right and refuse the survey — together. The distinctive lever: assert your **written right to withhold FPIC**, and **refuse to let your land be surveyed or cleared**, collectively and non-violently. This denies the company the consent and the ground it needs.

Build the coalition, local to international. Reach Liberia's community-land organisations (like the **Sustainable Development Institute**) and international allies (like **Global Witness** and **Friends of the Earth**), who can support the legal case, the RSPO grievance, and the international pressure. Gather a petition, as the clan gathered tens of thousands.

Build to last, and protect people. Liberian land fights run for years, against pressure and sometimes violence. Build clear roles, a secure archive, an inclusive way to decide together, a plan for the toll — and a plan to protect those most exposed, and to defend the win after it is recognised, because the pressure returns.

STEP 4: LEGAL, CONSENT & CERTIFICATION LEVERS

Liberia's sharpest lever is the consent the law puts in your hands, backed by the certification and finance the company depends on.

FPIC and Customary Land — Your First and Sharpest Lever

The route that freed the Jogbahn Clan's land: assert your **written right to give or withhold free, prior, and informed consent** over your customary land, and — backed by the **Land Rights Act**, which recognises your ownership even without a deed — **withhold it**, and refuse to let the land be surveyed or cleared. A community asserting and holding its FPIC is the strongest lever in this guide, and it can force even the highest office to recognise that the land is its own.

The Concession, the EIA, and the Courts

Contest the **concession or MOU** and its terms, take part in the **EIA** and attack its flaws, and — where the law or your consent is breached — challenge it in the **courts**, which can uphold your customary-land right. The Land Rights Act and the community-rights law are your legal foundation.

The RSPO and the Financiers

Palm-oil investors depend on their **RSPO certification** and their financiers. Take a documented abuse — land taken without consent, illegal clearing — to the **RSPO's grievance mechanism**, which can order a

stop-work and put certification at risk, and to the financiers, whose reputations you can reach. This is a powerful, low-cost, high-reach lever.

The Honest Limits

Straight talk: FPIC, the courts, and the certification route are real and powerful, but concession-holders are strong, institutions weak, and even a Presidential commitment is a recognition to be defended, won against pressure and violence. So use the strong tools — FPIC and customary land, the concession and EIA, the courts, the RSPO and financiers — pair them with a united community and public pressure, protect your people, and count consent withheld, a concession stopped or cut back, a right recognised, and a boundary held as wins — and keep defending them.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Consent becomes a veto. Not "we don't want the plantation" but *"this is our customary land, and the law gives us the right to withhold our consent — which we do."*

A survey becomes a refusal. *"We have not consented, and we will not let our land be surveyed or cleared."*

An abuse becomes an RSPO grievance. *"The company cleared our land without consent — a breach of the RSPO standard its certification depends on."*

The stand becomes a national and global cause. *"A clan refusing to hand over the forests and farms it lives on — and a right the highest office must recognise."*

Match it to the venue: the consent to the company and the government; the customary-land right to the courts; the abuse to the RSPO and the financiers; the stand to the coalition, the President, and the world.

STEP 5: MEDIA STRATEGY

In Liberia, public and international pressure is a powerful lever, because it reaches the RSPO, the financiers, and the highest office — the Jogbahn petition and coalition reached the President herself. Community-land organisations and international allies make the media front reach far.

Lead with the land, the consent, and the people, not procedure. Not "the EIA was deficient" but "a clan refusing to hand over the forests and farms it lives on — and asserting the right the law gives it to say no." Use your strongest material: proof of your customary ownership, the record of withheld consent, the documented abuses, and community voices.

Work several audiences at once — reach the certifier, financiers, and the President. Local and national attention reaches the government; international networks reach the RSPO, the financiers, and the foreign parent, where the company is most exposed. Make it easy: captioned photos, accurate summaries, a map, careful testimony.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people and unity — hold the community together, protect those most exposed, and let the clan lead its own story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Information request (to the government / EPA).

Subject: Request for the concession and permit — [project].

"We, the community of [place], request the concession or MOU, the EIA and environmental permit, and the boundaries for [project] on our customary land at [location]. [Contact.]"

8B — Withholding FPIC (to the company / government).

Subject: We withhold our consent — [project].

"We, the community of [place], hold this customary land under the Land Rights Act, and we exercise our legal right to withhold our free, prior, and informed consent to [project]. We will not permit our land to be surveyed or cleared. [Contact.]"

8C — Objection in the EIA.

Subject: Objection — EIA for [project].

"We, the community of [place], object to [project]: [it takes our customary land without consent; the EIA understates the harm to our forests and farms]. We ask that it be refused. [Attach evidence.]"

8D — RSPO grievance.

Subject: Grievance — [company] / [project].

"We report that [company], an RSPO member, is [clearing our land without consent / breaching the standard] at [location]: [specifics]. We ask the RSPO to order a stop-work and review its certification. [Attach evidence.]"

8E — To a community-land organisation / lawyer.

Subject: Customary land under threat — [project].

"Our community faces [project] on our customary land, and we are withholding consent. We've gathered [proof of ownership, the record of refusal, the abuses]. We ask for your help to assert our FPIC and land rights and to raise the pressure, as with the Jogbahn Clan. [Contact and evidence summary.]"

8F — To the foreign parent / financiers.

Subject: Land rights and reputational risk — [project].

"We are the community affected by [project] at [location], backed by your [company / finance]. It takes our customary land without our legally required consent, and faces challenge and RSPO grievance. This carries real reputational and legal risk. [Contact and evidence summary.]"

8G — To the President / high officials.

Subject: Our customary land and [project].

"We, the community of [place], ask that our right to withhold consent over our customary land be recognised, and that [project] not be permitted to expand onto our land without our approval — as was recognised for the Jogbahn Clan. [Attach evidence.]"

8H — Uniting the community.

Subject: Our land, our consent — let's stand as one.

"[Project] threatens our customary land. The law gives us the right to say no — and the Jogbahn Clan, standing united, made even the President recognise their land was free. Let's decide together, withhold our consent, and refuse the survey. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Establish it's your customary land, and unite the community.** Your land and your unity are your foundation.
2. **Assert and withhold your FPIC, and refuse the survey (8B) — collectively.**
3. **Document your ownership, the withheld consent, and any abuses.**
4. **File an RSPO grievance if the company is certified (8D), and object in the EIA (8C).**
5. **Reach a community-land organisation and international allies (8E), and gather a petition.**
6. **Raise the pressure to the financiers, the President, and the world (8F/8G/8H) — and defend the win.**

Even lean, those six put the consent the law gives you to work, and raise the pressure — the Jogbahn template.

WHEN THE SYSTEM IS TILTED

Liberia's tools are real, but the field can be tilted, and you must plan for it.

When the concession-holder is powerful. Don't fold: assert your written FPIC, refuse the survey, and reach the RSPO, the financiers, and the President, where the concession-holder's power doesn't protect it.

When they try to divide or pressure your community. This is the central danger. Hold together, decide collectively, expose manufactured "consent," and protect those most exposed to pressure or violence.

When the win is a recognition, not a final stop. Jogbahn won a commitment, not the erasure of every threat. Keep the coalition and the documentation ready, and defend the boundary, because the pressure returns.

When institutions are weak. Lean on the written law (FPIC, the Land Rights Act), the RSPO, the financiers, and international pressure, which reach beyond weak domestic institutions.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Liberia has serious, documented problems with the capture of land and concession deals, so this matters.

How to spot it. Concessions over customary land without consent; "consent" manufactured or coerced; EIAs written for the proponent; benefits to officials and chiefs while communities lose their land.

Who's supposed to guard against it. Anti-corruption and audit bodies examine public money and conduct. The **courts** can void a tainted concession. The **RSPO** and international bodies can strip legitimacy. And Liberia's **community-land organisations, international watchdogs (like Global Witness), and press** have exposed captured deals.

How to fight it safely. Document precisely and factually — how the consent was faked or coerced, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the anti-corruption bodies, the courts, the RSPO, international watchdogs, and trusted journalists rather than making accusations you can't back. Protect those exposed, and pair the exposure with the FPIC fight.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. Your customary land and withheld consent are the foundation; the documented abuses aim it; a united community and coalition are the muscle; the concession, the EIA, the courts, and the RSPO press the case; public and international pressure reach the President and the financiers. Together they multiply. One at a time, they stall — and defend the win.

Early on (weeks 1–8): establish and document your customary land; unite the community and withhold consent; refuse the survey; gather the abuses; build the coalition and a petition.

In the thick of it (months–years): file the RSPO grievance; contest the concession and EIA; reach the financiers and the President; open the media front, local to international.

The long haul (years): carry any litigation; keep the coalition and documentation ready; hold and defend the boundary; hold the line for consent withheld, a concession stopped or cut back, a right recognised — and defend it, because the pressure returns.

FINAL ASSESSMENT

Defending customary land in Liberia can be done — a clan asserting its written right to say no forced the highest office in the land to recognise that its land was its own. Hold both truths. Liberia's distinctive power is real: the law puts the consent in your hands — a community's right to give or withhold free, prior, and informed consent over its customary land, strengthened by the Land Rights Act — and a community that asserts it, refuses the survey, builds a coalition, and raises the pressure can turn back even a giant agribusiness. And the constraints are real: powerful concession-holders, weak institutions, a hunger for investment, and wins that are recognitions to be defended, won against real pressure and violence.

Here's the discipline that wins. Start from your land: establish and document your customary ownership, unite your community, and assert your written right to withhold FPIC — and withhold it, refusing to let the land be surveyed or cleared, as the Jogbahn Clan did. Contest the concession and the EIA, take a documented abuse to the RSPO and the financiers, and go to the courts on your customary-land right. Build the coalition and raise the pressure — a petition, the organisations, the international allies — until it reaches the highest office. Protect your people, hold your community together, and defend the win after it is recognised, because the pressure returns. Count consent withheld, a concession stopped or cut back, a

right recognised, and a boundary held as wins. That's what the Jogbahn Clan did — the written right, the refusal, the coalition, and the pressure together. So can you.